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File No.: EXP202310185

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 28, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202310185

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 6, 2023, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant), in which a complaint is made against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

“B.B.B., being aware of a complaint filed and subsequently dismissed, and using the position of councilor of the ***LOCALITY.1 City Council, publishes a note from a municipal plenary session as evidenced, attaching personal data of myself and my wife, with the purpose of creating defenselessness and public lynching since it is not only based on publishing it on his personal profile, but also expands it to a group of 400 people, ***GROUP.1, many of whom are neighbors of the Municipality, in order to create damage to the image of both myself and my wife. (...)”

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In addition, the respondent disseminated that note in a group formed by 400 people, ***GROUP.1, many of whom are neighbors of the municipality, with the aim of damaging his image and that of his wife.

Along with the complaint, the following is provided:

- Screenshots of the publication subject to the complaint made on May 26, 2023, at 8:10 a.m. on the personal profile of the social network Facebook of the respondent (B.B.B.) and in the group of that social network “***GROUP.1...”.

Its content states:

“(...)”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on July 24 and 26, 2023, this complaint was forwarded to the respondent and to the ***LOCALITY.1 City Council, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on July 22 and August 1, 2023, as stated in the acknowledgment of receipt in the file, respectively.

On August 24, 2023, a written response was received in this Agency, in due time and form, from the ***LOCALITY.1 City Council, in which the following was stated:

- Preliminary nature.

o The complainant has been convicted by final judgments for coercion against (...). In fact, one of the points to be addressed that appears in the published note from the municipal plenary session concerns

the possibility of filing criminal actions against the complainant and his wife for false accusation.

o The complainant filed a complaint and subsequently filed a lawsuit against the (...); it was agreed to archive both cases. Moreover, the complainant published the admission of the lawsuit on social media where the name of (...) appears, and provided it to media outlets.

o The complainant did not exercise any rights in relation to this matter before the ***LOCALITY.1 City Council.

- That the Provincial Office for the Protection of Personal Data of the (...) acts as the Data Protection Officer of the ***LOCALITY.1 City Council.

- That the publication subject to the complaint was disseminated on the personal profile of the respondent, not on that of the City Council, and that it transcribes a call

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to the Plenary where the principle of publicity of plenary sessions is reflected and specified.

- That the data appearing in the publication is not sensitive, only of a nominal nature; its omission is not possible as the proposal for agreement is directed against the claiming party and the session is public. It mentions the Seventh Additional Provision of the LOPDGDD.

Along with the written submission, the following documentation was provided:

- Document No. 1 "****DOCUMENT.1".

- Document No. 2 "AEPD Resolution".

- Document No. 3 "AEPD Report":

On 05/09/2023, this Agency received a written response from the party being claimed against, in due time and form, which expressed the same as previously stated by the City Council.

THIRD: On 06/09/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claiming party was admitted for processing.

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;"

In the present case, pursuant to Article 4.1 of the GDPR, the exposure of the name and surname of the claiming party and their spouse in the publication of the personal profile of the party being claimed against and in the group "****GROUP.1..." constitutes processing of personal data; since it identifies or

makes identifiable the affected individuals.

III

Lawfulness of the Processing of Personal Data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states: "Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the consideration of the processing of personal data as lawful are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

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d) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

e) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In this regard, Recital 40 of the GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or for the purposes of taking steps at the request of the data subject prior to entering into a contract."

In the specific case examined, as indicated, on 26/05/2023 the respondent published on their personal profile on the social network Facebook (B.B.B.) and in the group "***GROUP.1..." a text titled "TITLE.1". The publication contains data about a complaint filed by the complainant and their spouse against (...) from the ***LOCALITY.1 City Council, as well as the names and surnames of these individuals (A.A.A. and C.C.C.).

In their response to the transfer, the respondent acknowledged having made the publication in question on their personal profile, but stated that they merely transcribed a call for a full meeting of the ***LOCALITY.1 City Council without including sensitive data of the complainant and their spouse, only nominal data, which could not be omitted in order to discuss the matter.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner. In particular, when it is necessary for the performance of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or the fundamental rights and freedoms of the data subject which

require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation to which the data controller is subject, to protect vital interests of the data subject or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

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However, in the present case, it is evident that the processing of data carried out by the respondent is not covered by any of the legal grounds mentioned above.

Consequently, in accordance with the evidence available at this time in the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement, attributable to the respondent, for violation of Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could constitute the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the limitation period, Article 72.1 “Very serious infringements” of the LOPDGDD states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) (...)

a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679; (...)”

V

Proposal for sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this time in the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed

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by violating the provisions established in Article 6.1 of the GDPR, allows for an initial administrative fine of €1,000 (one thousand euros) to be set.

VI

Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each

supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Specifically, the following possible measures are proposed to be adopted within 10 working days:

- The removal of the content published on the personal profile of the social network Facebook of the party being claimed (B.B.B.) and in the group “***GROUP.1...” subject to the claim.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution that concludes this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO APPOINT D.D.D. as instructor and E.E.E. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the actions prior to the initiation of this sanctioning procedure.

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FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be an ADMINISTRATIVE FINE of €1,000 (one thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to B.B.B., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €800.00 (eight hundred euros), resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €800.00 (eight hundred euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €600.00 (six hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (€800.00 or €600.00), they must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

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Likewise, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The sanctioning procedure shall have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On June 4, 2024, the respondent has proceeded to pay the fine in the amount of 600 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures"

provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202310185, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER B.B.B. to notify the Agency within 10 days from the date this resolution becomes firm and enforceable, of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to B.B.B.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months starting from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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